

2026. The application was approved by the Court on May 22, 2026. See Order re Authorizing Service filed May 26, 2026.

Per the City, the Secretary of State refused to comply with this order because such service was only authorized for service of process and not as to service for subsequent papers. See Reply re Motion to Compel Compliance filed June 22, 2026 (the “June Reply”), ¶13; Declaration of Harry J. Moren re Reply filed June 22, 2026, ¶15 and **Exhibit 6** thereto (including letter from the California Secretary of State dated June 2, 2026).

In the prior June Reply paper, the City requested the hearing on the Motion to Compel be held in abeyance pending service and the hearing continued. See June Reply, ¶16.

Accordingly, the matter was continued to September 21, 2026. See Minute Order dated July 2, 2026. The moving party was directed to timely serve this motion before the next hearing or else advise the Court if it is withdrawn. *Id.*

In a recently filed further Reply paper, the City requests that the Court continue the hearing for 90 days to allow the City additional time to complete service on Banks. See Reply filed September 15, 2026.

Analysis

The Court in its discretion will continue the hearing to December 28, 2026, 9:00 am, in Department 34.

Disposition

The Court finds and orders as follows:

1. The hearing on the Motion to Compel is hereby **CONTINUED** to **December 28, 2026, 9:00 am**, in **Department 34**.
2. The City shall timely serve this motion before the next hearing or else advise the Court if it is withdrawn.
3. The Court shall issue the order after hearing.
4. Moving party to file an amended notice of motion and serve such amended notice on the Third Party along with a copy of this order and the underlying papers.

11. 9:00 AM CASE NUMBER: C25-03626
CASE NAME: JUAN GARCIA GALAN VS. NATIONS FOODSERVICE, INC.,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: NATIONS FOODSERVICE, INC.,
TENTATIVE RULING:

Defendant Nation’s Foodservice, Inc. (“Defendant”) filed a Motion to Compel Arbitration on May 13, 2026 (the “Motion to Compel Arbitration”). The Motion to Compel Arbitration was set for hearing on September 21, 2026. No opposition was filed.

Background and Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard “in a summary way in the manner ... provided by law for the making and hearing of motions.” Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098.

The moving party Defendant has shown that a written agreement to arbitrate exists between the parties. It is also evident that the claims at issue in this action are within the scope of and subject to that agreement. See Declaration of Raquel Gatchalian filed May 13, 2026, ¶¶3-4 and **Exhibit B** (the “MAA”) thereto.

However, the moving party Defendant has not shown adequate demand and notice for arbitration **in accordance with the terms of the operative arbitration agreement**. See MAA, ¶3 (“A party wishing to initiate arbitration must notify the other party in writing by hand delivery or certified mail.”). **None of the three declarations filed in support of the motion reference any such written notice served by “hand delivery or certified mail.”**

While the Court notes that there was an effort to confer with the opposing party regarding a stipulation, no showing was made of a proper demand under the MAA. *Mansouri v. Superior Court* (2010) 181 Cal.App.4th 633, 641 (a party moving to compel arbitration must show a request or demand for arbitration in compliance with the terms of the written agreement to arbitrate has been made and refused); *Platt Pacific, Inc. v. Andelson* (1993) 6 Cal. 4th 307, 313 (demand for arbitration according to the terms of the arbitration agreement is a condition precedent to right to compel arbitration).

Nonetheless, the Court encourages the parties to further confer regarding a voluntary stipulation for arbitration to avoid unnecessary further motion practice if a demand can or already has been made in conformance with the agreement terms and conditions.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Arbitration is **DENIED, WITHOUT PREJUDICE**.
2. The Court shall issue the order.

12. 9:00 AM CASE NUMBER: C26-00308
CASE NAME: SYIMYK KALYKOV VS. CHRIS BRECHEISEN
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF CONCORD

TENTATIVE RULING:

This matter is **continued to November 2, 2026**.

Plaintiff's declaration in opposition to the demurrer is missing the attached exhibits. Further, Plaintiff has provided new facts in its opposition and the parties are ordered to meet and confer regarding whether Plaintiff should amend his complaint now and then the Defendants be permitted to demurrer to the amended complaint.

The parties shall engage in a meet and confer by Zoom or telephone no later than October 12, 2026. Defendants Contra Costa Transportation Authority and the City of Concord will file and serve a declaration by October 19, 2026. The declaration will confirm whether the meet and confer occurred and identify any items the parties were able to reach an agreement on, including whether they can stipulate to allow Plaintiff leave to amend the complaint. This declaration may also address whether Plaintiff gave Defendants an extension of time to answer as opposed to file a responsive pleading. Plaintiff may file and serve a declaration addressing the issue by October 26, 2026, and may include the exhibits referred in the declaration filed with the opposition. No further briefing is permitted.

13. 9:00 AM CASE NUMBER: C26-00467
CASE NAME: PETRO-ANALYTICAL, INC., VS. TANK-TEK ENVIRONMENTAL CORPORATION,
***HEARING ON MOTION IN RE: STRIKE THE CROSS-COMPLAINT OF TANK-TEK ENVIRONMENTAL CORPORATION**
FILED BY: PETRO-ANALYTICAL, INC.,
TENTATIVE RULING:

Before the Court is a motion by cross-defendant Petro-Analytical, Inc. to strike certain relief sought in the cross-complaint of Tank-Tek Environmental Corporation. For the reasons set forth, the motion is **GRANTED, WITH LEAVE TO AMEND**.

Background

Plaintiff and cross-defendant Petro-Analytical, Inc. ("Petro") filed a complaint against defendant and cross-complainant Tank-Tek Environmental Corporation ("Tank-Tek") for breach of contract and an accounting arising out of a written Gross Profit and Revenue Sharing Agreement. (Compl. ¶ 6.) Petro alleges Tank-Tek agreed to invoice clients referred to Tank-Tek by Petro, collect the invoices, and remit a share of the profits to Petro. (Compl. ¶ 7.) Petro alleges that Tank-Tek owes Petro \$214,088.07 for invoices through December 11, 2025 but claims damages for breach of the agreement estimated to be over \$500,000. (Compl. ¶¶ 10, 20.)

Tank-Tek filed a cross-complaint against Petro, alleging five causes of action. Tank-Tek alleges it had a "long-standing business relationship" with Petro, and that it had an oral contract with Petro to act as Petro's subcontractor for underground storage tank inspection, compliance and repairs. (X-Compl. ¶